SUNTECK REALTORS PRIVATE LIMITED – LITIGATION TRACKER

1. Background

Asmita Jyoti Co-operative Housing Society Limited, a co-operative housing society registered under the provisions of the Maharashtra Co-operative Societies Act, 1960 bearing registration no. BOM/W-P/HSG(TC)/6691/92-93 ("**Society**"), is evaluating revised redevelopment offers from 3 (three) developers. Sunteck Realtors Private Limited (CIN U70109MH2022PTC381460) ("**Sunteck**") has submitted one of the offers. The solvency, net worth and project credentials submitted with the offer relate to Sunteck Realty Limited (CIN L32100MH1981PLC025346) ("**SRL**"). Sunteck has not submitted Proforma E (Litigation History) with its tender submission, and no litigation has been disclosed. This tracker sets out the proceedings before the National Company Law Tribunal ("**NCLT**") involving SRL that we were able to trace online.

2. NCLT litigations traced online:

Disclaimer: The NCLT matters set out in this paragraph have been traced by us online. We have raised requisitions with Sunteck in respect of these matters and are awaiting its responses. The position set out below is based solely on the orders traced online and is subject to the responses to be received from Sunteck.

The matters traced relate to schemes of amalgamation of wholly owned and step-down wholly owned subsidiaries of SRL with SRL under Sections 230 to 232 of the Companies Act, 2013. They are not adversarial proceedings. Sunteck is not a party to any of them. We have not traced any insolvency petition against SRL or Sunteck in the NCLT records reviewed.

However, a news report referred to in our legal due diligence note on Sunteck states that homebuyers moved the NCLT against Starlight Systems (I) Private Limited (**Starlight**) to recover INR 7.65 crore (Free Press Journal, 26 June 2023). Starlight has since been amalgamated with SRL (Sr. Nos. 1 and 2 below), and the sanction order directs that proceedings pending against Starlight continue against SRL. We have not traced this petition in the NCLT records.

Forum	Entries (cases)	Involving SRL
NCLT, Mumbai Bench	3	1. Company Scheme Application C.A.(CAA) 180/MB/2023 filed by Starlight and SRL 2. Company Scheme Petition C.P.(CAA) 281/MB-III/2023 filed by Starlight and SRL 3. Company Scheme Application C.A.(CAA) 155/MB/2023 filed by Skystar Buildcon Private Limited and others with SRL
Total	**3**	

Summary of NCLT litigations traced online:

Sr. No	Litigation Details	Sunteck Representation in Bid Documents	Orders Traced Online (Y/N)	Remarks
1.	Company Scheme Application C.A.(CAA) 180/MB/2023 filed by Starlight and SRL before NCLT, Mumbai Bench, Court III for the scheme of amalgamation of Starlight with SRL	Not disclosed (Proforma E not submitted)	Y	The aforesaid application relates to the scheme of amalgamation of Starlight, a wholly owned subsidiary of SRL, with SRL and is not adversarial in nature. Starlight was incorporated on 29 April 2022 on conversion from a limited liability partnership. *Requisition raised; response from Sunteck awaited.*
Order dated 27 July 2023		The application was allowed. The meetings of the shareholders and creditors of both companies were dispensed with, and notices were directed to be served on the regulators, including MahaRERA. The appointed date of the scheme is 29 April 2022.		
2.	Company Scheme Petition C.P.(CAA) 281/MB-III/2023 in C.A.(CAA) 180/MB-III/2023 filed by Starlight and SRL before NCLT,	Not disclosed (Proforma E not submitted)	Y	Pursuant to the below mentioned order, the liabilities of Starlight, including any proceedings pending against it, now vest in SRL. The Society should take note and seek further clarification with regard to the status

Sr. No	Litigation Details	Sunteck Representation in Bid Documents	Orders Traced Online (Y/N)	Remarks
	Mumbai Bench, Court III for sanction of the scheme			of the homebuyers' petition against Starlight referred to above. *Requisition raised; response from Sunteck awaited.*
Order dated 29 July 2024		The scheme was sanctioned with the appointed date of 29 April 2022, and Starlight was dissolved without winding up. The properties, rights and liabilities of Starlight vest in SRL, and any proceedings pending by or against Starlight continue by or against SRL. MahaRERA did not raise any objection, and the observations of the Regional Director and the Official Liquidator were addressed by undertakings.		
3.	Company Scheme Application C.A.(CAA) 155/MB/2023 filed by Skystar Buildcon Private Limited, Advaith Infraprojects Private Limited, Magnate Industries Private Limited, Shivay Brokers Private Limited and SRL before NCLT, Mumbai Bench-III for the scheme of amalgamation of the 4 (four) transferor companies with SRL	Not disclosed (Proforma E not submitted)	Y	The aforesaid application relates to the scheme of amalgamation of wholly owned or step-down wholly owned subsidiaries of SRL with SRL and is not adversarial in nature. The below mentioned order which we were able to trace online is a procedural order and does not sanction the scheme. We have not come across the petition for sanction of this scheme or any sanction order online, and its current status is not known. *Requisition raised; response from Sunteck awaited.*
Order dated 20 October 2023		The meetings of the shareholders and creditors were dispensed with, and notices were directed to be served on the regulators, including MahaRERA for Skystar Buildcon Private Limited and SRL. The order records the submission that no inquiry or investigation is pending against the applicant companies under the Companies Acts and that no insolvency petition has been admitted against them.		

3. Qualifications

This tracker is based solely on the tender submission of Sunteck and the NCLT orders and case status records traced online. The responses to our requisitions on the NCLT matters in paragraph 2 are awaited. We have not searched other court, tribunal or RERA portals for Sunteck or SRL, and this tracker is not a complete record of the litigation involving them. Orders are summarised as they appear in the copies traced online, which may not be official copies.